

GINSBURG, J., dissenting

culvert, but the only visible border-related features are fences and border-crossing posts that sit atop each side. See *Hernández*, 582 U.S., at 557 (BREYER, J., dissenting). The game Hernández and his friends were playing involved running up the embankment on the United States side, touching the barbed-wire fence, and running back down to the Mexican side. While the game was ongoing, Border Patrol Agent Jesus Mesa, Jr., appeared on his bicycle and detained one of Hernández's friends as he was running down the embankment on the U.S. side. Hernández, who was unarmed, retreated into Mexican territory. Mesa pointed his weapon across the border, "seemingly taking careful aim," and fired at least two shots. App. to Pet. for Cert. 199. At least one of the shots struck Hernández in the face, killing him.

Hernández's parents brought suit under *Bivens*, asserting, *inter alia*, that Mesa had violated their son's Fourth and Fifth Amendment rights. The United States District Court for the Western District of Texas granted Mesa's motion to dismiss. A panel of the United States Court of Appeals for the Fifth Circuit affirmed the dismissal of the parents' Fourth Amendment claim but held that their Fifth Amendment claim could proceed.

The Court of Appeals reheard the case en banc and affirmed the District Court's dismissal of the parents' claims. The full court agreed with the panel that Hernández lacked Fourth Amendment rights. *Hernandez v. United States*, 785 F.3d 117, 119 (2015) (*per curiam*) (citing *United States v. Verdugo-Urquidez*, 494 U.S. 259 (1990)).¹ It declined,

¹ *United States v. Verdugo-Urquidez*, 494 U.S. 259 (1990), is not dispositive of the Fourth Amendment claim in this case. There, the Court held that the Fourth Amendment did not apply to federal agents' warrantless search of a Mexican drug trafficker's home in Mexico. *Id.*, at 262, 274–275. *Verdugo-Urquidez*'s practical concerns, among them, that a warrant issued by a U.S. judge "would be a dead letter outside the United States," *id.*, at 274, do not bear on the complaint filed by Hernández's parents. In contrast to *Verdugo-Urquidez*, it would not be "impracticable" or "anomalous" to subject Mesa's U.S.-based conduct to Fourth Amendment scru-